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Guidelines for iCommons Project Leads

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Guidelines for iCommons Project Leads

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Thank you for volunteering to be an International Commons (iCommons) Project Lead. We are excited to make Creative Commons a truly global organization, and your help is indispensable in helping us reach this goal. This document provides a quick orientation to the process and a few pointers on running things smoothly.

Overview of Process

As the illustration on the previous page shows, the iCommons process includes both license porting (i.e. producing a set of licenses specific to your country/jurisdiction) and community building. These two main aspects of your iCommons work are referred to as Phase I and Phase II, respectively.

The overview below offers a slightly more detailed description of the steps involved in each Phase.

PHASE I: LICENSE PORTING

1.1 Creative Commons identifies the Legal Project Lead and the Affiliate Institution for license porting. Our decision to begin drafting a license for a particular country depends entirely on identifying a Legal Project Lead and an affiliate institution/law firm for that country. Selection criteria for these practitioners and academics include:

- Professional legal credentials and reputation, generally;
- Reputation among copyright and intellectual property experts;
- Enthusiasm for the project;
- Willingness to work within the framework described in these Guidelines;
- Ability to communicate in English; and
- Willingness to establish contacts and to collaborate with experts in the technology field.

The Legal Project Lead will head up the particular country's drafting effort for licenses. These people will be in charge of soliciting and filtering comments from their community of lawyers and ultimately drafting the final changes. It is best to have this responsibility centralized, even if the peer review process is diffuse.

1.2 Creative Commons and Legal Project Lead/Affiliate Institution sign Memorandum of Understanding. While we may in some cases facilitate informal discussion about a country's participation in iCommons before a Legal Project Lead is identified, we will not announce or draw attention to such discussions as "active" iCommons countries until Creative Commons determines who this Legal Project Lead will be and the two parties sign a Memorandum of Understanding (MOU – see sample on iCommons' Wiki for Project Leads).

1.3 Creative Common registers the country domain name.

1.4 Legal Project Lead establishes timeline of activities with iCommons Director. At the outset, the Legal Project Lead is to set out expected dates for completing steps in the Phase I license porting process. (Suggested timeframes are included with the steps that follow.) During the drafting process, serious problems should be called to the attention of the iCommons Director when they become apparent.

1.5 Legal Project Lead forms a Legal Advisory Board (optional).

1.6 Legal Project Lead produces first draft (suggested timeframe = one month). With the MOU signed, Creative Commons hands the controls over to the Legal Project Lead, who is to begin by producing a first draft of the new license. Here's how that drafting process should work:

(a) ***Review the license*****.** The license you'll be working from is the newest version of Attribution-Noncommercial-ShareAlike license, found at this URL:

<http://creativecommons.org/licenses/by-nc-sa/2.0/legalcode>.

You should use this license as a basis for your draft because it is the most comprehensive Creative Commons license: every provision that you will need to transpose for the 11 generic licenses appears in this license.

(b) ***Translate the license (if applicable)*****.** Literally translate the license verbatim into your country's first language.

(c) ***Analyze and alter the license*****.** With the basic license literally translated into your country's first language, it is time for you to begin the real challenge: analysis of the license for provisions that must be

changed in order to comport with your country's laws, and revision of those provisions. Note that the original license is drafted to comport with U.S. law, whereas copyright law might be quite different in your country. (For example, your jurisdiction may provide for neighboring rights and moral rights and differ from the United States on "fair use".) Also, you may want to add provisions on governing law and governing language clauses, and look at other, more conceptual issues.

(d) ***Translate the changed license back to English and send it to the iCommons Director.*** This step is tedious, yes, but it helps us keep up with your changes and progress. (We apologize for the fact that we are not as multilingual as you. Thank you for being patient with us on this point – it demonstrates why your help is crucial to iCommons' success!)

1.7 Draft is released for Public Discussion (suggested timeframe = one month). With the first draft and English translation ready for comment, Creative Commons announces the addition of a new iCommons country and establishes an email list for public feedback on the license drafts. The Legal Project Lead, with guidance from the iCommons Director, encourages comment and criticism. The language in which this discussion takes place as a rule will be the language of the jurisdiction concerned.

1.8 Legal Project Lead produces Second Draft (suggested timeframe = two weeks). The Legal Project Lead revises the first draft in response to the discussion group's suggestions. The re-draft should incorporate necessary changes to the licenses themselves and to their explanations (e.g., FAQs, disclaimers, human-readable "Commons Deeds"). **Here again, we would ask that you please provide an English translation of this second draft.**

1.9 Creative Commons reviews Second Draft (suggested timeframe = one month). In some cases, we might do this "review" on the public email list; in others, offline. Either way, the iCommons Director will work with the Legal Project Lead to produce a suitable final version. In some cases, this process may be intense, given the amount of translation that may need to occur during the revision process.

1.10 Legal Project Lead sees to it that final licenses are re-translated into English.

1.11 Legal Project Lead arranges the necessary translation and customization of the Commons Deed, the FAQs and other Web site

content for the launch (suggested timeframe = one to two months). While finalizing and translating the final version of the licenses (and mapping the Attribution-Noncommercial-ShareAlike license into 11 different licenses), the Legal Project Lead conducts the translation and customization of the Commons Deeds and other necessary Web content (e.g., trademark and other policies, "choose license" at http://creativecommons.org:8000/istr/, etc.) If necessary, the Legal Project Lead will translate the FAQ of Creative Commons and add country specific FAQs to guide people's proper use of the licenses. This stage will include cooperative work with the technological staff of Creative Commons to prepare the license engine page. The Legal Project Lead may wish to prepare Web contents for public relations purposes as well (working with the Public Project Lead if one has been designated).

1.12 Ported licenses are posted on creativecommons.org. Creative Commons places the full final licenses as well as the Commons Deeds on its Web site in the national language of this new participant country.

1.13 The Launch is celebrated. Whether the Launch be in the form of a party, a convention, a television program, a press conference, or all of the above will be the decision of the Legal Project Lead and the Community Project Lead (if this position has been filled). The event should attract the kind of publicity we need to make sure that people will know where to turn for "creative work available for others to create upon and share."

Further information on Phase I License Porting is presented in the Creative Commons DVD, to be sent to Legal Project Leads at the start of the license porting process; in addition, information contained in the iCommons' Wiki link "The Drafting Process" provides specific directions to follow when porting the licenses.

PHASE II: COMMUNITY BUILDING

2.1 Creative Commons identifies the Public Project Lead and Public Affiliate Institution for community building. In addition to the Legal Project Lead, we need public project leads for Phase II. The Affiliate Institution can be identical to Phase I, or could be an independent institution that works with the Legal Project Lead. Selection criteria for these outreach specialists include:

- Professional credentials/ public relations experience and reputation, generally;
- Reputation among the creative community and within the technology industry to support Creative Commons technologies, and also within business to garner support for promotional events;
- Enthusiasm for the project; and
- Willingness to work within the framework described in these Guidelines.

The Public Project Lead will head up the particular country's community building efforts for educating the public about iCommons licenses and encouraging their use. These individuals will be in charge of building awareness around the local Creative Commons licenses and trying to convince specific groups to integrate the licenses into their current practices.

2.2 Creative Commons and Public Project Lead/Affiliate Institution sign Memorandum of Understanding. We may in some cases lay the groundwork for promoting a country's iCommons licenses before Phase II community building officially begins. (For example, the launch of the licenses may be an opportunity to bridge the legal porting with community building). For this reason, Creative Commons and the Public Project Lead may sign a Memorandum of Understanding (MOU) well in advance of the official start of community building, which normally will correspond with the public launch of the licenses. For a sample MOU, see the iCommons' Wiki for Project Leads.

2.3 Public Project Lead works with Creative Commons to establish an Advisory Board. The Board should include representatives from the business community as well as the educational, artistic, technological and Internet publishing communities.

2.4 The Advisory Board works with the Public Project Lead to establish country-specific objectives that are consistent with the Creative Commons' mission. The Advisory Board should then charge the Public Project Lead with developing a work plan for accomplishing these objectives. A proposed timeline should accompany this work plan.

2.5 The Public Project Lead presents the work plan and timeline to the iCommons Director. While Creative Commons aims to allow a high degree of autonomy for individual iCommons projects, it at the same

time needs to ensure the consistency of the Creative Commons message across countries; therefore, the Project Lead is encouraged to report to the iCommons Director on a semi-annual basis, with the report including the current work plan and budgetary issues, if any. During the Community Building process, serious problems should be called to the attention of the iCommons Director when they become apparent.

2.6 Early on, the Public Project Lead sets up a Web site for the country's iCommons project. This Web site should be in conformity with the iCommons Style Standards and should include:

- Licenses
- Press archives (mirrored with Creative Commons' site)
- Country-specific FAQs plus standard iCommons FAQs
- Flash video in the country's primary language
- Interesting content from the local creative community
- A blog highlighting local use of Creative Commons licenses and related events and activities

As countries achieve the steps in Phases I and II, progress will be displayed in the iCommons Chart on Country Progress, found on the iCommons Wiki for Project Leads and appearing in simpler form on the iCommons Web site.

Review of Roles: Who Does What

Phase I

Creative Commons will:

a) Name the Legal Project Lead/Affiliate Institution and sign an MOU with that party;
b) Register the domains concerned and send the DVD on license porting.
c) Work with the Legal Project Lead to establish an appropriate timeline and form the Legal Advisory Board (optional);
d) For the Public Discussion, set up an email mailing list (and Wiki for drafting, if necessary), offer help running the list, and archive the list; send out a press release when the country is added to the iCommons Web site;
e) Participate on occasion in public discussion of the project to promote the project lead's efforts on our Web site and through

press announcements at the launch and close of the license development;

f) Answer questions about U.S. law and the policy of licenses (it should be noted though that Creative Commons does not provide legal advice);

g) Review the proposed final draft and decide to implement it – or seek further public discussion or legal research.

The Legal Project Lead will:

a) Sign an MOU with Creative Commons;
b) Propose a timeline for the license porting process and form the Legal Advisory Board (optional);
c) Produce the first draft and an English translation of it;
d) Drive discussion on the public mailing list;
e) Decide which issues raised on the discussion list warrant a change to the first draft;
f) Produce a second draft and an English translation;
g) Propose the re-draft to Creative Commons;
h) Lead a short second round of public discussion if necessary;
i) See to it that the licenses are translated back into English;
j) Translate and customize the Commons Deeds and 'Choose License' web pages and other related important contents for the launch;
k) Prepare the country specific FAQ; and
j) Organize the events surrounding the launch of the licenses (possibly in coordination with the Public Project Lead).

Phase II

Creative Commons will:

a) Name the Public Project Lead/Affiliate Institution and sign an MOU with that party;
b) Work with the Public Project Lead to establish an Advisory Board;
c) Verify that the objectives set out for this iCommons project are consistent with Creative Commons' mission;
d) Work with the Public Project Lead to establish an appropriate timeline; and
e) Help to ensure that this iCommons country Web site conforms to the Style Standards by providing necessary additional information.

Guidelines for iCommons Project Leads

The Public Project Lead will:

a) Sign an MOU with Creative Commons;
b) Possibly help the Legal Project Lead organize the celebration of the launch of the licenses;
c) Work with Creative Commons to establish an Advisory Board for that country's iCommons project;
d) Work with the Advisory Board to set out objectives and agree on a timeline for achieving these objectives;
e) Vet the proposed work plan and timeline with the iCommons Director to ensure consistency with the overall Creative Commons mission;
f) Build a Web site for the project and ensure that it is kept updated;
g) Carry out the objectives as set out in the work plan.

Contact Information

Sending your question to the right person below might simply help save some time. Thanks!

iCommons policy and process *Talking to the press* *Creative Commons corporate policy* *Experience with the original licenses* *Questions about U.S. law*	Christiane Asschenfeldt christiane@creativecommons.org Glenn Otis Brown glenn@creativecommons.org Neeru Paharia neeru@creativecommons.org
---	
Problems with archived mailing lists	mailman-admin@lists.ibiblio.org
---	
Creative Commons Web site	Matt Haughey matt@haughey.com

And don't forget these helpful pages

http://creativecommons.org/faq
http://creativecommons.org/projects/international